

CONSENT ORDER

This order is issued by a panel of the discipline committee, pursuant to Section 27(4) of the *Foresters Act* and following acceptance of a proposal tendered by a member under ABCFP Bylaw 13.41.

Between

Association of BC Forest Professionals ("ABCFP")

and

John V. ZIRUL ("ZIRUL")

Background

1. ZIRUL has been licensed as a Registered Forest Technologist ("RFT") since 2005;
2. ZIRUL began working for CNS Consulting in 2011 and was employed there until 2014.
3. In 2013, the regional cruising specialist identified issues with respect to timber cruise effects on the 'cut to cruise' comparisons for a major licensee. This work was conducted in part by ZIRUL, while employed by CNS Consulting;
4. In March 2014, the ABCFP received a complaint regarding ZIRUL's role in the cruising work;
5. Following an ABCFP investigation into the matter, in October, 2018 ZIRUL tendered a proposal to the registrar pursuant to ABCFP bylaw 13.41 conditionally admitting to some of the allegations against him.

Admissions

6. ZIRUL admits that he:

- a) Did not establish cruise plots consistent with the provincial cruising manual, resulting in unintended impacts on stumpage appraisal submissions, and in doing so:
 - i. failed to maintain high standards in conduct and daily work, pursuant to bylaw 11.4.1; and,
 - ii. failed to ensure the work was complete, correct and clear, pursuant to bylaw 12.2.2; and,
 - iii. failed to exercise appropriate judgement and discretions with due care, pursuant to bylaw 12.2.3.

Disposition

- 7. ZIRUL consents to a panel of the Discipline Committee making the following orders under section 27(4) of the *Foresters Act*:
 - a) That ZIRUL will pay a fine of \$1,000 to the ABCFP;
 - b) That ZIRUL will take further professional development courses recommended by the ABCFP, focussing on both
 - i. balancing professional ethics and obligations as an employee, and
 - ii. current cruising practices; and
 - c) That it is a condition of ZIRUL's registration that he will ensure he is fully informed of the requirements of the cruising manual if he undertakes further cruising.
- 8. ZIRUL consents to the publication by the ABCFP on the ABCFP's website, newsletter and magazine of the facts in this case, including the full text or summary of a consent order.
- 9. ZIRUL agrees to have his name and the details of the settlement published in a discipline digest.

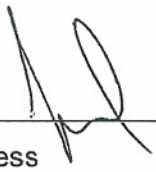
10. The ABCFP and ZIRUL each acknowledge that they have read this document and fully understood the terms of this settlement and voluntarily enter into this agreement for the purposes of making a full and final compromise and settlement of all claims and proceedings arising out of or related to the Complaint;

11. The ABCFP and ZIRUL understand that they each have the right to seek independent legal advice and have been encouraged to seek same before signing this agreement.

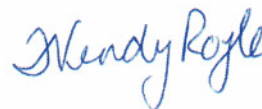
This order is approved and accepted by Mr. ZIRUL and the members of the discipline committee panel, effective this 27 day of May, 2019.


John V. ZIRUL, RFT #1354


Joe Kenny, P.Eng, RPF
Chair, discipline panel


Witness


Tania Barnes, RPF
Member, discipline panel


Wendy Royle
Lay member, discipline panel